

Court No. - 42

Case :- WRIT - C No. - 989 of 2023

Petitioner :- Smt Rizwana Parvez

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Shivangi Singh

Counsel for Respondent :- C.S.C.,Sunil Kumar Dubey

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Learned counsel for the petitioner to serve copy of the petition upon counsel appearing for the second respondent.

Put up this case on 6 February 2023, as fresh.

Order Date :- 2.2.2023

S.Prakash

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Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Shivangi Singh

Counsel for Respondent :- C.S.C.,Gaurav
Tripathi,Sunil Kumar Dubey

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

Heard learned Counsel for the parties.

Petitioner by the instant writ petition seeks the following reliefs:-

"(i) Issue a writ order or direction in the nature of mandamus to direct the respondent no.2 to restore the electricity supply of petitioner's connection service no.674333899 forthwith.

(ii) Order or direction in the nature of mandamus to direct the respondent no.2 to decide the representation of the petitioner dated 22.12.2022 (annexure no.5 to the writ petition)."

Learned Counsel appearing for the respondent - Electricity Corporation at the outset submits that there is no impediment in providing electricity connection / supply to the petitioner. Petitioner, accordingly, to submit an application in terms of para 4.39 of the Electricity Supply Code, 2005 (in short "Code") for reconnection of the electricity supply.

In view thereof, the **writ petition is disposed as withdrawn** with the aforesaid liberty to the petitioner. In the event, such an application is made, the same shall be considered by the respondent - corporation as per the Code expeditiously.

Order Date :- 10.2.2023

I.A.Siddiqui